

**NON COMPETITIVE MEMORANDUM
FOR SIMPLIFIED ACQUISITION ACTIONS
IAW FAR 13.106-3(b)(1)**

1. **REQUIRING AGENCY** – DOJ/Bureau of Prisons, FDC Honolulu
2. **NATURE/DESCRIPTION OF ACTION BEING APPROVED** – Urgency
3. **DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY’S NEEDS** The agency urgently needs repair parts for the operation of the CT-2-Hon cooling tower. The cooling tower controls the climate temperatures throughout the institution to meet the mandatory safety temperatures for inmates and staff. The estimated cost for this requirement is \$46,268.00.
4. **IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION** – 41 U.S.C. 253; 41 U.S.C. 1901(e)
5. **DEMONSTRATION THAT THE PROPOSED CONTRACTOR’S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:**
At present, FDC Honolulu has only one of its two cooling towers operational, which controls the climate temperatures throughout the institution, with one cooling tower being down it is posing a significant life-safety health concern for staff and inmates due to the geographical location of FDC Honolulu. Further delay of parts would potentially overheat damage and cause failure to the single working cooling tower. Any disruptions to the operational cooling towers would impact the orderly and safe operation of the institution. Trane U.S. INC is the manufacture of the cooling tower and can supply the required parts in a timely manner for the repair to have the cooling tower operational.

CONTRACTING OFFICER’S CERTIFICATION

I certify this justification is accurate and complete to the best of knowledge and belief.

MANJIT DOLA Digitally signed by MANJIT DOLA
Date: 2025.04.03 10:17:59 -07'00'

Contracting Officer